

Amendment No. 1 to HB0853

Terry

Signature of Sponsor

AMEND Senate Bill No. 259*

House Bill No. 853

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 33-8-202(c)(1), is amended by deleting the subdivision and substituting:

(1) A child's parent, legal guardian, or legal custodian may access, in accordance with § 36-8-103, all medical records resulting from treatment provided to an unemancipated minor pursuant to this section;

SECTION 2. Tennessee Code Annotated, Section 33-8-202(c)(2), is amended by deleting the subdivision and substituting:

(2) Notwithstanding subdivision (c)(1), a child's parent, legal guardian, or legal custodian shall not access, in accordance with § 36-8-103, medical records resulting from the treatment provided to an unemancipated minor pursuant to this section if the treating professional is required to report abuse of the unemancipated minor pursuant to § 37-1-403 or § 37-1-605, and the treating professional believes that access to the medical records, mental health records, rehabilitation records, or prescription records is reasonably likely to endanger the life or physical safety of the minor; and

SECTION 3. Tennessee Code Annotated, Section 36-8-103(c)(4), is amended by deleting the subdivision and substituting:

(4) To access and review all health records and medical records of the child, including mental health records, rehabilitation records, and prescription records;

SECTION 4. Tennessee Code Annotated, Section 68-11-304(i), is amended by deleting the subsection and substituting:

(i) If an unemancipated minor receives medical treatment, then the minor's parent, legal guardian, legal custodian, or other person with medical decision-making authority for the unemancipated minor may access, and a healthcare provider or healthcare facility shall provide access to, in accordance with § 36-8-103, all medical records resulting from medical treatment of the minor, even if the treatment was provided to the unemancipated minor without parental consent, including treatment provided pursuant to § 68-10-104(c), § 68-34-107, § 63-6-220, § 63-6-222, or § 63-6-223.

SECTION 5. Tennessee Code Annotated, Section 68-11-304(j), is amended by deleting the subsection and substituting:

(j) Notwithstanding subsection (i), a child's parent, legal guardian, or legal custodian shall not access, in accordance with § 36-8-103, medical records resulting from the treatment provided to an unemancipated minor without parental consent, including treatment provided pursuant to § 68-10-104(c), § 68-34-107, § 63-6-220, § 63-6-222, or § 63-6-223, if the treating professional is required to report abuse of the unemancipated minor pursuant to § 37-1-403 or § 37-1-605, and the treating professional believes that access to the medical records is reasonably likely to endanger the life or physical safety of the minor.

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it.